

4.	Tran v. Coast Community College District 24-1380332	Before the Court at present is a filing by Plaintiff Tom Tran ("Plaintiff"), identified as a "Motion for Continuance," which asks to continue "the trial date" of November 22, 2024. The Motion is DENIED. Although the Motion asked to continue a pending trial date, no trial date had yet or has yet been set in this case. What was pending on 11/22/24, when this Motion was filed, was a Case Management Conference, which has since been reset for 12/13/24. <u>However, from what has been filed by Plaintiff to date, proper service on the named defendant, identified as "Coast Community College District," still has not occurred.</u> What was filed by Plaintiff on 7/29/24, as ROA 12, does not purport to show service by someone who "is not a party to this action." (See <i>C.C.P. § 414.10</i> ["Any person who is at least 18 years of age and not a party to the action" may serve a summons.] [Emphasis added].) Nor does it identify how service was allegedly effectuated, and on whom. It thus does not demonstrate valid service. The Case Management Conference presently scheduled for 12/13/24 is therefore CONTINUED to January 31, 2025. Although Plaintiff is a self-represented litigant, the court must uniformly apply the procedural and substantive rules of the legal system, even as to a self-represented party. (See <i>Nwosu v. Uba</i> (2004) 122 Cal.App.4th 1229, 1246-1247.) Plaintiff therefore must comply with the applicable requirements of the <i>Code of Civil Procedure</i> (the "C.C.P.") and with the <i>California Rules of Court</i> (the "C.R.C"). He has not adequately done so here. Plaintiff can consult with the court's self-help center if he has any procedural questions about his case. <i>The Clerk is to give notice of this ruling.</i>
5.	Rico Garcia v. Anahop, Inc. 22-1245449	Defendant Anahop, Inc., dba IHOP's ("Defendant") unopposed Motion to Compel Mental Examination ("IME") of plaintiff Francisco Javier Rico Garcia ("Plaintiff") is GRANTED. An IME is a permissible method of discovery where the plaintiff claims mental and/or emotional injuries. (<i>Civ. Proc. Code §§ 2032.310 and 2032.320</i>.) Here, Plaintiff has claimed several past and ongoing mental/emotional injuries that allegedly resulted from the incidents alleged in the Complaint. (Complaint ¶¶ 42, 62, 72, 82, 92, 103, 112, 116-118.) Plaintiff also indicated in response to written discovery that he suffered from mental/emotional injuries due to the alleged facts of this case. (Valenti